



Nottingham Corporation Act 1971

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ELIZABETH II



1971 CHAPTER vii

An Act to confer further powers on the lord mayor, aldermen and citizens of the city of Nottingham and county of the same city; to make further provision with reference to Wilford Bridge over the river Trent in the city; to make further provision for the local government and finances of the city; and for other purposes.
[17th February 1971]

WHEREAS—

(1) The city of Nottingham and county of the same city (hereinafter referred to as “the city”) is a county borough under the local government and management of the lord mayor, aldermen and citizens of the city (hereinafter referred to as “the Corporation”):

(2) The bridge across the river Trent in the city authorised by the Wilford Bridge Act 1862 is owned by the Corporation and it 1862 c. cxvi. is expedient to make provision for restricting or prohibiting the use of that bridge by traffic (including pedestrians) and to authorise the Corporation to take down and remove that bridge:

(3) It is expedient that the Corporation should be authorised to agree a scheme with the owners of certain lands fronting, adjoining or abutting the circular space or area in the city known as Wellington Circus referred to in section XXVIII of the Act 2 & 3 Vict. Cap. 32 intituled "An Act for inclosing, allotting, and improving certain Open Fields in the Parish of Saint Mary in the Town and County of the Town of Nottingham"; to provide that the said space should become open as pleasure grounds for the use and enjoyment of the public in accordance with the provisions of such scheme and that further provision should be made in regard thereto as by this Act provided:

(4) It is expedient to make further and better provision with respect to the local government of the city and the finances of the Corporation:

(5) It is expedient that the other provisions contained in this Act be enacted:

(6) The purposes of this Act cannot be effected without the authority of Parliament:

1933 c. 51.

(7) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

(8) A plan showing Wellington Circus hereinbefore referred to and a book of reference relating thereto were duly deposited in the office of the Clerk of the Parliaments, House of Lords, and in the Private Bill Office, House of Commons, and with the town clerk of the city:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows, that is to say:—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Nottingham Corporation Act 1971.

(2) The Nottingham Corporation Acts and Orders 1845 to 1952 and this Act may be cited together as the Nottingham Corporation Acts and Orders 1845 to 1971.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Wilford Bridge.

Part III.—Wellington Circus.

Part IV.—Superannuation.

Part V.—Finance and miscellaneous.

Part VI.—General.

3.—(1) In this Act, except as otherwise expressly provided or unless the subject or context otherwise requires—

PART I
—cont.

Interpretation.
1933 c. 51.

1937 c. 68.

1961 c. 62.

“ the Act of 1933 ” means the Local Government Act 1933;

“ the Act of 1937 ” means the Local Government Superannuation Act 1937;

“ the Act of 1961 ” means the Trustee Investments Act 1961;

“ the city ” means the city of Nottingham and county of the same city;

“ the Corporation ” means the lord mayor, aldermen and citizens of the city;

“ the council ” means the council of the city;

“ enactment ” includes an enactment in this Act or in any general or local Act, and a provision of an order, byelaws, scheme, regulations or other instrument made under or confirmed by a general or local Act;

“ the fund ” means the superannuation fund maintained by the Corporation under Part I of the Act of 1937;

“ the narrower-range part ”, “ property ” and “ the wider-range part ” in relation to the fund have the same meanings as they have for the purposes of the Act of 1961.

(2) Except where the context otherwise requires, any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

PART II

WILFORD BRIDGE

4. In this Part of this Act, except as otherwise expressly provided or unless the subject or context otherwise requires—

Interpretation
of Part II.

1862 c. cxvi.

“ the Act of 1862 ” means the Wilford Bridge Act 1862;

“ the board ” means the British Waterways Board;

“ the bridge ” means the bridge authorised by the Act of 1862;

“ contravention ” in relation to a condition, restriction or requirement includes failure to comply with that condition, restriction or requirement;

“ statutory undertakers ” means any person authorised by any enactment to carry on any undertaking for the supply of electricity or gas in the city;

“ traffic ” includes pedestrians and animals.

PART II
—*cont.*

Repeal of
enactments
relating to
bridge.

5.—(1) The enactments referred to in columns (1) and (2) of the following table are hereby repealed to the extent specified in column (3) of that table:—

Act (1)	Section (2)	Extent of repeal (3)
The Act of 1862	23 (Bridge to be repaired to satisfaction of County Surveyor)	The whole section.
	40 (Bridge to be public but not County Bridge)	The words “ but the Bridge shall not be deemed a County Bridge so as to make the County of Nottingham liable to repair light or watch the same”.
	43 (Ferry boats in case of accident to bridge)	The whole section.
	135 (Amendment of Wilford Bridge Act 1862)	The reference to section 23 of the Act of 1862.
1862 c. cxvi. 1952 c. xxxiii.	Nottingham Corporation Act 1952	

1893 c. i.

(2) If the Corporation purchase the railway bridge across the river Trent authorised by the Manchester, Sheffield and Lincolnshire Railway (Extension to London &c.) Act 1893, or any part of that bridge, section 104 (For the protection of the owner of Wilford Bridge) of that Act shall on the date on which the purchase is completed be and is hereby repealed.

(3) If the council resolve to take down and remove the bridge pursuant to the following provisions of this Part of this Act the unrepealed provisions of the Act of 1862 and section 135 of the Nottingham Corporation Act 1952 shall on the date on which the resolution is passed be and are hereby repealed.

Power to
restrict or
close the
bridge.

6.—(1) The Corporation may at any time with the consent of the Secretary of State pursuant to this section by resolution of the council prohibit, restrict or regulate the use of the bridge by all traffic or any specified class or classes of traffic.

(2) Before the council pass a resolution under subsection (1) of this section the Corporation shall consult with—

- (a) the chief officer of police for the city; and
- (b) one or more organisations representing persons who use the bridge or are likely to be otherwise affected by the resolution unless it appears to the Corporation that there is no such organisation which can properly be consulted.

(3) Before submitting a resolution to the Secretary of State for his consent under this section the Corporation shall—

PART II
—cont.

(a) publish in one or more local newspapers circulating in the city a notice stating—

(i) the intention to prohibit, restrict or regulate the use of the bridge by traffic or any specified class or classes of traffic;

(ii) that within a period of twenty-eight days from the date of the first publication of the notice any person may by notice to the Secretary of State object to the resolution;

(b) publish a similar notice in the London Gazette;

(c) cause a copy of the said notice to be displayed in a prominent position at each end of the bridge.

(4) If objection to the resolution is duly made to the Secretary of State and is not withdrawn the Secretary of State shall cause an inquiry to be held with respect thereto unless he considers that it is unnecessary to hold any such inquiry having regard to the circumstances or the nature of the objection.

(5) The Secretary of State shall not consent to the prohibition on the use of the bridge by pedestrians unless he is satisfied that suitable alternative means of communication are available for pedestrians in place of the bridge and he shall take into account the availability of means of communication for other traffic.

(6) Where the Secretary of State consents to a resolution under subsection (1) of this section and the Corporation indicate by notices conspicuously placed on the bridge or in proximity thereto that the use of the bridge by all traffic or any specified class or classes of traffic is prohibited, restricted or regulated, any person (other than a person in the employment of the Corporation in the execution of any act necessary to the proper performance of his duty as such employee) who shall wilfully drive any vehicle or walk on, over or across the bridge in contravention of the terms of any such notice shall be guilty of an offence and liable on summary conviction to a fine not exceeding £50.

7. If the Secretary of State consents to the prohibition on the use of the bridge the Corporation may subject to the provisions of section 8 (As to removal of bridge) of this Act take down and remove the bridge.

8.—(1) If the council resolve to take down and remove the bridge the Corporation shall, as soon as reasonably practicable thereafter, take down and remove the bridge and shall ensure so far as reasonably practicable that such taking down and removal does not unnecessarily obstruct or otherwise interfere with or impede navigation or the flow of the river Trent.

As to
removal of
bridge.

PART II
—cont.

(2) The Corporation may sell the structure and materials of the bridge and apply the proceeds for any purpose for which capital money may properly be applied.

(3) If the exercise of the powers conferred by this section shall involve—

- (a) any obstruction of navigation; or
- (b) any interference with the apparatus or property of the board or any statutory undertakers; or
- (c) any interference with any works of the Trent River Authority for the purpose of preventing flooding or remedying or mitigating any damage caused by flooding;

the powers shall only be exercised in such manner and subject to such conditions as may be agreed between the board, the statutory undertakers or the Trent River Authority (as the case may be) and the Corporation or, in the absence of agreement as may be determined by an arbitrator to be appointed by agreement between the parties, or, in default of agreement, to be appointed by the President of the Institution of Civil Engineers on the application of either party after giving notice in writing to the other party.

For protection
of East
Midlands Gas
Board.

9. For the protection of the undertakers the provisions of this section shall, unless otherwise agreed in writing between the Corporation and the undertakers, apply and have effect:—

(1) In this section unless the subject or context otherwise requires—

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than at the commencement of this Act;

“apparatus” means mains, pipes or other apparatus belonging to the undertakers or for the maintenance of which they are responsible and includes any structure constructed for the lodging therein of apparatus;

“in” in a context referring to apparatus includes under, over, across, along or upon;

“plan” includes a section and description;

“position” includes depth;

“the undertakers” means the East Midlands Gas Board:

- (2) No prohibition, restriction or regulation of the use of the bridge under the powers of section 6 (Power to restrict or close the bridge) of this Act shall prevent the undertakers from obtaining reasonable access to any apparatus in the bridge for the purpose of maintaining, inspecting, repairing, renewing or removing that apparatus:

Provided that—

(a) if the board cause or permit any vehicle to be used upon the bridge they shall have regard to the condition of the bridge;

(b) nothing in this paragraph shall relieve any person who uses a vehicle or causes or permits a vehicle to be used upon the bridge from or impose on the Corporation liability for any damage or loss suffered by reason or in consequence of such use:

- (3) Notwithstanding anything in subsection (3) of section 8 (As to removal of bridge) of this Act if the Corporation in the exercise of the powers of the said section resolve to take down and remove the bridge, no apparatus shall be removed, nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in the bridge be extinguished until adequate alternative apparatus has been laid or constructed and is in operation to the reasonable satisfaction of the undertakers:

- (4) (a) If the Corporation for the purpose of the taking down and removal of the bridge require the removal of any apparatus they shall give to the undertakers notice in writing of such requirement with a plan of the proposed work, and the following provisions of this paragraph shall have effect;

- (b) The Corporation shall, if practicable, provide and construct to the satisfaction of the undertakers alternative facilities for carrying the apparatus over or under the river Trent or afford to the undertakers the necessary accommodation, facilities and rights for the laying or construction of adequate alternative apparatus in some other bridge over the said river and in other lands of the Corporation and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

Provided that if the alternative apparatus or any part thereof is to be laid or constructed elsewhere than in other lands of the Corporation and the Corporation are

PART II
—cont.

unable to afford such facilities and rights as aforesaid the undertakers shall, on receipt of a written notice to that effect from the Corporation, forthwith use their best endeavours to obtain the necessary facilities and rights:

- (5) (a) Any alternative apparatus to be laid or constructed in a bridge and lands of the Corporation in pursuance of paragraph (4) of this section shall be laid or constructed in such manner and in such line or situation as may be agreed between the undertakers and the Corporation or, in default of agreement, settled by arbitration;
- (b) The undertakers shall, after the manner of laying or construction and the line and situation of any alternative apparatus has been agreed, or settled by arbitration as aforesaid, and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (4) of this section, proceed forthwith with all reasonable dispatch to lay or construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required to be removed under the provisions of this section and in default the Corporation may, notwithstanding anything in paragraph (3) of this section, remove the apparatus:
- (6) Notwithstanding anything in paragraph (5) of this section, if the Corporation give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the laying or construction of the alternative apparatus or the removal of the apparatus required to be removed as will be situate in any bridge or lands of the Corporation, such work, instead of being executed by the undertakers, shall be executed by the Corporation with all reasonable dispatch under the superintendence, if given, and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the Corporation to execute the actual placing, erection, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around the apparatus (where the apparatus is laid in a trench) within 12 inches above the apparatus:

- (7) Where in accordance with the provisions of this section the Corporation afford to the undertakers facilities and rights for the laying or construction, maintenance,

repair, renewal and inspection in lands of the Corporation of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Corporation and the undertakers or, in default of agreement, determined by arbitration:

PART II
—cont.

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed in a bridge, the arbitrator shall give effect to all reasonable requirements of the Corporation for ensuring the safety of the bridge and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with the bridge;

(b) if the facilities and rights to be afforded by the Corporation in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the Corporation by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the case:

(8) The Corporation shall repay to the undertakers the reasonable costs, charges and expenses incurred by the undertakers in or in connection with—

(a) the removal and relaying or replacing, alteration or protection of any apparatus or the provision and construction of any new apparatus under any of the provisions of this section;

(b) the cutting off of any apparatus from any other apparatus; and

(c) any other work or thing reasonably necessary in consequence of the exercise by the Corporation of any of the powers of this Part of this Act:

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act 1950 (which 1950 c. 39. imposes limitations on undertakers' rights to payment) shall, so far as applicable, extend and apply to any payment to be made under this paragraph as if the works in respect of which the payment is to be made were

PART II
—cont.

such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act" there were substituted the words "agreed or settled by arbitration under section 9 (For protection of East Midlands Gas Board) of the Nottingham Corporation Act 1971":

- (9) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be determined by arbitration;
- (b) In settling any difference under this section the arbitrator may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with the use of any apparatus.

Restriction
on right to
prosecute.

10. The written consent of the Attorney-General shall be requisite for the taking of proceedings in respect of an offence created by or under this Part of this Act by any person other than a party aggrieved or the Corporation.

PART III

WELLINGTON CIRCUS

Enclosure
to be public
pleasure
ground.

11.—(1) In this section—

- "the Act of 1839" means the Act 2 & 3 Vict. Cap. 32 intituled "An Act for inclosing, allotting, and improving certain Open Fields in the Parish of Saint Mary in the Town and County of the Town of Nottingham";
- "the award" means the Derby Road (Lammas Fields) Enclosure Award 1846 made in pursuance of the Act of 1839;
- "the deposited plan" means the deposited plan referred to in the Preamble to this Act;
- "the enclosure" means the circular space or area in the city referred to in section XXVIII of the Act of 1839 (and now forming part of Wellington Circus) and numbered 1 on the deposited plan;

“owner” means in relation to each of the relevant premises the person or persons, other than a mortgagee not in possession, entitled for the time being to dispose of the fee simple thereof;

“relevant premises” means each of the allotments adjoining Wellington Circus and referred to in the award.

(2) Subject to subsection (3) of this section—

(a) the enclosure (or such part thereof as may be agreed in the scheme hereinafter mentioned) shall be public pleasure grounds within the meaning of the Public Health Acts and the Corporation may exercise in regard thereto the powers conferred upon them by any enactment in relation to public pleasure grounds and the expenses in connection therewith shall be discharged out of the general rate fund of the city;

(b) section XXVIII of the Act of 1839 shall have effect as if the words “and shall be fenced off from the public Highway by Iron Palisadoes and such Fence shall at all Times thereafter be upheld and repaired by such Person or Persons as the said Commissioners shall by their Award order and direct” were omitted.

(3) The provisions of subsection (2) of this section shall not take effect until a scheme in relation to the use and ownership of the enclosure is agreed in writing between the Corporation and the owners of each of the relevant premises and—

(a) the powers of the Corporation in relation to public pleasure grounds shall only be exercised in regard to the enclosure in accordance with such a scheme; and

(b) no part of the existing fence surrounding the enclosure shall be removed nor shall the enclosure be opened to the public except in accordance with such a scheme.

(4) Any scheme for the time being in force under the provisions of subsection (3) of this section may be amended from time to time or revoked by the Corporation with the consent of the owners of each of the relevant premises.

PART IV

SUPERANNUATION

12.—(1) In this Part of this Act, except as otherwise expressly provided or unless the subject or context otherwise requires, words and expressions to which meanings are assigned by the Act of 1937 have the same respective meanings, and—

Interpretation
of Part IV.

“contributor” means a contributor to the fund as respects whom the Corporation are the employing authority;

PART IV
—*cont.*

“ death grant ” and “ transfer value ” have, in relation to a contributor, the meanings assigned to them respectively by the Regulations of 1954;

“ the principal Acts ” means the Local Government Superannuation Acts 1937 to 1953;

“ the Regulations of 1954 ” means the Local Government Superannuation (Benefits) Regulations 1954;

“ return of contributions ” in relation to a person who has ceased to be a contributor includes any sum paid to, or in respect of, him by way of interest on the amount of the contributions returned to him;

“ superannuation benefit ” includes any benefit which is or may be granted in pursuance of the principal Acts or the regulations made thereunder or in pursuance of any local Act or scheme or local Act scheme.

(2) Without prejudice to the provisions of section 15 (Power to require designated sums to be paid to trustees) and section 16 (Transfers of employment) of this Act, the provisions of the principal Acts and the regulations made thereunder shall apply and have effect in relation to a person who is a contributor on or after the coming into force of this Part of this Act subject to the extensions, modifications and applications of the said Acts and regulations contained in this Part of this Act.

Commence-
ment of
Part IV.

13. This Part of this Act shall come into force on the expiry of the period of one month beginning with the date on which this Act is passed.

Benefits in
certain cases
of premature
retirement.

14.—(1) Where, after the coming into force of this Part of this Act, the employment of a contributor who has attained the age of fifty-five years and completed ten years' service is terminated by the Corporation in the interests of efficiency before he has attained the age of sixty-five years, the contributor shall be entitled to superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment:

Provided that this subsection shall not apply to a contributor if, not later than one month after ceasing to hold his employment, he notifies the Corporation in writing that he does not wish this subsection to apply to him.

(2) Where, after the coming into force of this Part of this Act, a contributor who has attained the age of fifty-five years and

completed twenty-five years' service but has not attained pensionable age terminates his employment at his own request, then superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment shall be payable in lieu of any entitlement to a return of contributions under section 10 of the Act of 1937:

PART IV
—cont.

Provided that—

- (a) where a person has become entitled to a superannuation benefit by virtue of this subsection, he may, by notice given to the Corporation in writing at any time before any payment on account of such benefit has been made to him, elect that this subsection, and any rights to which he is entitled thereunder, shall cease to apply in relation to him as from the date on which such notice is given;
- (b) unless the Corporation otherwise determine on compassionate grounds, no benefit shall be paid to a person by virtue of this subsection before the date on which he attains pensionable age.

(3) Where a person who has become entitled to a superannuation benefit by virtue of subsection (2) of this section dies before any payment on account of such benefit has been made to him, the like benefits shall, as from the date of his death, be payable in respect of him as would have been paid if he had died on the last day of his employment as a contributor.

(4) For the avoidance of doubt it is hereby declared that, where a person is for the time being entitled to any benefit by virtue of subsection (2) of this section, that benefit shall be deemed to be a superannuation benefit for the purpose of the definition of "service" in subsection (1) of section 40 of the Act of 1937, whether or not any payment has been made to him on account thereof.

(5) For the purposes of section 16 of the Local Government Superannuation Act 1953, and of any rules made thereunder, a 1953 c. 25. person entitled to a superannuation benefit by virtue of subsection (2) of this section shall be deemed to cease to hold his employment on the day immediately preceding the day on which that benefit first becomes payable to him, and a superannuation benefit as aforesaid shall be deemed to be such a superannuation allowance or benefit as is referred to in subsection (1) of the said section 16.

(6) In this section "pensionable age" in relation to any person means the earliest age at which, if he were to remain a contributor without a break of service, he would, on ceasing

PART IV
—cont.

to hold his employment, become entitled to superannuation benefits by reason of having, otherwise than under this section, attained such age and completed such period of service as is prescribed in the principal Acts or the Regulations of 1954, as the case may be.

Power to
require
designated
sums to be
paid to
trustees.

15.—(1) A contributor may at any time, by notice in writing to the Corporation given in such form as the Corporation may approve, direct—

- (a) that the provisions of this section shall apply to the amount (if any) which would, but for the giving of such notice, be payable to his estate either by way of death grant or as a sum calculated by reference to the aggregate amount of his contributions to the fund, with compound interest thereon; and
- (b) that any such amount (hereafter in this section and in Schedule 1 to this Act referred to as “the designated sum”), instead of being paid to his estate, shall be paid to such responsible persons, not being less than two nor more than four in number, as shall be appointed for that purpose by the Corporation (hereafter in this section and in the said Schedule 1 referred to as “the trustees”) to be held upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(2) Any direction given in accordance with this section shall be effective, and the designated sum shall accordingly be paid to the trustees and shall be held by them upon the trusts, and with and subject to the powers and provisions, in force under the said Schedule 1 at the date of such direction.

(3) The trusts, powers and provisions set out in the said Schedule 1 may from time to time be varied by resolution of the council, but so that the trusts, powers and provisions as so varied shall only apply in relation to directions received by the Corporation after the making of such variations.

(4) Any direction given by a contributor under this section shall be irrevocable and binding on such contributor and his estate and all persons interested therein.

(5) In this section and in the said Schedule 1, “contributor” includes any person who, on or after the coming into force of this Part of this Act, is a contributor to the fund, and “former contributor” shall be construed accordingly.

16.—(1) The Corporation may, in accordance with the provisions of a scheme made by them for the purposes of this section—

PART IV
—cont.

Transfers of
employment.

(a) as respects any contributor who ceases or has ceased to hold employment with the Corporation in order to enter an employment (in this paragraph referred to as “the new employment”) in relation to which interchange arrangements are not for the time being in force, if that contributor so desires, in lieu of making any such payment to him from the fund as is referred to in section 10 of the Act of 1937 (or, where such a payment has been made, if it is repaid to the fund by the contributor), either—

(i) make from the fund in respect of him a payment by way of a transfer value to the body or persons responsible for administering any superannuation scheme in connection with the new employment; or

(ii) subject to such consequential provisions as may be prescribed in the scheme, award to or in respect of him superannuation benefits calculated by reference to the service which he was entitled to reckon at the date when he ceased to hold his employment with the Corporation:

Provided that no benefit shall be paid to a person by virtue of this sub-paragraph before such date as may be prescribed under the scheme; and

(b) as respects any person who enters or has entered into employment with the Corporation from an employment in relation to which interchange arrangements are not for the time being in force, receive any payment made by or in respect of him to the fund, whether by way of transfer value or otherwise, and shall confer on him by virtue of such payment such rights under the principal Acts, and the regulations made thereunder, as may be prescribed under the said scheme.

(2) A scheme made under this section shall be of no effect unless it has been approved by the Secretary of State and the Secretary of State may approve any such scheme, either with or without modifications, after consultation with such organisations as are, in his opinion, representative of the interests concerned.

(3) A scheme made under this section may be amended or revoked by a subsequent scheme.

(4) Any body or persons responsible for administering a superannuation scheme in connection with an employment as respects which interchange arrangements are not for the time being in force may make any amendments or modifications of

PART IV
—cont.

that superannuation scheme which may be desirable to facilitate the operation of any scheme made by the Corporation under this section.

(5) Where any provision of the principal Acts or the regulations made thereunder which has effect in relation to a contributor contains a reference to a transfer value, such reference shall be deemed (as may be appropriate) to include a reference to any such payment by way of a transfer value as is referred to in subparagraph (i) of paragraph (a) of subsection (1) of this section or to such payment by way of a transfer value or otherwise as is referred to in paragraph (b) of subsection (1) of this section.

1948 c. 33.

(6) In this section “interchange arrangements” means any arrangements, whether by virtue of rules made under section 2 of the Superannuation (Miscellaneous Provisions) Act 1948 or by virtue of any other enactment apart from this section, providing for the preservation of superannuation rights following a change of employment.

Extension of
foregoing
sections.

17.—(1) The Corporation may, at the request in writing of any other employing authority, being the employing authority of any person who participates in the benefits of the fund, determine that, subject to the provisions of this section and to such terms and conditions and from such date as may be agreed between the Corporation and the employing authority, all or any of the provisions of the last three foregoing sections of this Act, and of any scheme made under section 16 (Transfers of employment) of this Act, shall extend and apply in relation to that person.

(2) An employing authority may make any such request to, and enter into and carry into effect any such agreement with, the Corporation as is mentioned in subsection (1) of this section notwithstanding anything contained in any enactment; and, where under any enactment or any agreement made under an enactment provision is made for expenditure to be reimbursed by an employing authority to the fund, such provision shall extend and apply in a like manner to any expenditure incurred under any of the said foregoing sections or the said scheme in pursuance of the provisions of this section.

(3) In this section any reference to a person shall be deemed to include a reference to any class or description of persons.

PART V

FINANCE AND MISCELLANEOUS

Power to
borrow.

18.—(1) The Corporation may borrow—

(a) such sums as may be necessary for any of the purposes of this Act;

- (b) without the consent of any sanctioning authority, such sums as may be necessary for paying the costs, charges and expenses of this Act;

PART V
—cont.

and, subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part.

(2) The Corporation shall repay sums borrowed under paragraph (b) of the foregoing subsection within five years from the date of borrowing.

(3) It shall not be lawful to exercise the powers of borrowing conferred by paragraph (a) of subsection (1) of this section except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act 1946. 1946 c. 58.

19.—(1) In addition to the modes of borrowing prescribed by the Act of 1933 or by any other enactment the Corporation may raise money—

Power to
Corporation
to raise
money by
issue of
bills.

- (a) for any purpose for which the Corporation are authorised to borrow;
- (b) in anticipation of the receipt of revenues, for any purpose for which the revenues of the Corporation may properly be applied;

by means of bills to be called “ City of Nottingham Bills ” (in this section referred to collectively as “ bills ” and separately as a “ bill ”), subject to, and in accordance with, the following provisions:—

- (i) A bill shall be in the form prescribed by regulations made under this section and shall be for the payment of the sum named therein in the manner and at the date therein mentioned, being a date not more than twelve months from the date of the bill:
- (ii) A bill shall entitle the holder thereof to payment at maturity of the sum expressed in the bill to be payable:
- (iii) Bills may be offered for purchase (whether by tender or otherwise) in such manner and on such conditions as the Corporation may determine:
- (iv) Bills shall be issued under the authority of a resolution passed by the council, and shall bear the signature of the treasurer of the city or of some other person authorised by the Corporation:
- (v) The Corporation may make regulations providing for—
- (A) the preparation and form and the mode of issue, payment and cancellation of bills;

PART V
—cont.

(B) the issue of a new bill in lieu of one defaced, lost or destroyed;

(C) the prevention, by the use of counterfoils or of a special description of paper or otherwise, of fraud in relation to bills; and

(D) the giving of a proper discharge on the payment of a bill:

(vi) The amount of money received in respect of a bill shall be deemed to be principal money raised by means of the bill, and the difference between the amount payable in respect of a bill and the amount received in respect thereof shall be deemed to be interest on the principal money so raised:

(vii) The aggregate amount payable on bills current at any one time shall not (except by the amount payable on bills issued shortly before any other bills fall due in order to pay off the last-mentioned bills) exceed—

(A) the sum of two million pounds; or

(B) one-fifth of the amount of the estimated gross rate income of the city during the then current financial year;

whichever is the greater:

(viii) Subject to the provisions of the last foregoing paragraph the Corporation may renew a bill at maturity:

(ix) The Corporation may borrow for the purpose of repaying the principal money raised by bills but, except as aforesaid, any power of the Corporation to borrow shall be suspended to the extent of the amount which has been raised for capital purposes by the issue of bills.

(2) In this section—

“financial year” means a period of twelve months ending on 31st March;

“gross rate income” means the gross rate income as used in the determination of the product of a rate of one penny in the pound under rules made pursuant to section 113 of the General Rate Act 1967;

“revenues” has the same meaning as in section 218 of the Act of 1933;

“signature” includes a facsimile of a signature by whatever process reproduced.

1967 c. 9.

Power to
raise money
abroad.

20.—(1) Any method by which the Corporation are empowered by any enactment to raise any money which they are authorised

to borrow shall, notwithstanding anything in such enactment, be deemed to include the raising of money by that method outside the United Kingdom or in any foreign currency.

PART V
—cont.

(2) The powers conferred by the foregoing subsection shall not be exercised except with the consent of the Treasury, and subject to such conditions as the Treasury may impose.

(3) The enactments empowering the Corporation to raise money shall have effect in relation to a transaction authorised by this section for the raising of money in a foreign currency as if for any reference in those enactments to sterling there were substituted a reference to the foreign currency and for any reference therein to a sum expressed in terms of sterling there were substituted a reference to the sum expressed in terms of the foreign currency (adjusted, where necessary, to produce an amount which the Corporation consider appropriate having regard to all the circumstances of the transaction).

(4) Nothing in this section shall be taken as exempting the Corporation from the provisions of any order under section 1 of the Borrowing (Control and Guarantees) Act 1946 or from the provisions of the Exchange Control Act 1947.

1946 c. 58.
1947 c. 14.

21.—(1) Subject to the provisions of this section, the powers exercisable by the Corporation under the Act of 1961 to invest any property belonging to the wider-range part of the fund shall include power to invest such property in such manner as they think fit (and whether alone or in association with any other person) in the acquisition, development or management of land situated in the United Kingdom (elsewhere than in the city), the Isle of Man or the Channel Islands, or any interest in such land and used or to be used for residential, commercial or industrial purposes but Part IV of Schedule 1 to the Act of 1961 shall not apply to any investment made under this subsection.

Investment of
superannua-
tion fund in
acquisition,
etc., of land.

(2) For the purposes of subsection (1) of this section an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme established in the United Kingdom, the Isle of Man or the Channel Islands, having the effect of enabling persons to participate in the profits and income arising from the acquisition, holding, management or disposal of such land or interest in land as are specified in that subsection shall be regarded as an investment within the terms of that subsection.

(3) Nothing in subsection (1) of this section shall prevent the Corporation investing property belonging to the wider-range part of the fund in the acquisition, development or management of land in the city if the investment is made by the Corporation in association with any other local authority or local authorities

PART V
—cont.

or as an investment in the units of a unit trust scheme or in participation certificates or in any form of participation under any trust or scheme referred to in subsection (2) of this section.

(4) So long as the value of the investments of property for the time being made under the powers conferred by this section is equal to or greater than one-quarter of the total value of the wider-range part of the fund, no further investment may be made thereunder.

(5) For the purposes of the last foregoing subsection, the value of any investment of property belonging to the wider-range part of the fund shall be deemed to be the value of the investment at the time at which it was made.

(6) Subsections (2) to (7) of section 6 of the Act of 1961 shall apply in relation to the exercise of the powers of investment conferred by this section as they apply in relation to the exercise by the Corporation of the powers conferred by section 1 of that Act to invest any property belonging to the wider-range part of the fund in a manner specified in Part III of Schedule 1 to that Act.

(7) In this section—

“local authority” has the same meaning as in section 40 of the Act of 1937;

1968 c. 25.

“participation certificate” has the same meaning as in section 2 of the Local Authorities’ Mutual Investment Trust Act 1968; and

1958 c. 45.

“unit trust scheme” has the same meaning as in section 26 of the Prevention of Fraud (Investments) Act 1958.

Modifications
of Act of
1961.

22.—(1) Part II of Schedule 1 to the Act of 1961, in its application to the investment by the Corporation of any property belonging to the narrower-range part of the fund, shall have effect subject to the following modifications:—

(a) for paragraphs 3 and 4 thereof there shall be substituted the following paragraphs:—

“3. In fixed-interest securities issued by any public, municipal or local authority, or any publicly controlled or nationalised industry or undertaking, whether established within or outside the United Kingdom.

4. In fixed-interest securities issued by the government of any territory outside the United Kingdom.”;

(b) for paragraph 6 thereof there shall be substituted the following paragraph:—

“6. In debentures issued by a company incorporated in the United Kingdom or established under the law of any territory outside the United Kingdom.”;

(c) in paragraph 9 thereof the words "in the United Kingdom", where first occurring, shall not apply, and the following sub-paragraph shall be added at the end of that paragraph:—

PART V
—cont.

"(g) any public, municipal or local authority established outside the United Kingdom."

(2) Paragraph 1 of Part III of the said Schedule 1, in its application to the investment by the Corporation of any property belonging to the wider-range part of the fund, shall have effect as if for the words "and not being securities falling within Part II of this Schedule" there were substituted the words "or in any securities issued by a company established under the law of any territory outside the United Kingdom, and not being in either case securities falling within Part II of this Schedule."

(3) The following sub-paragraph shall be substituted for sub-paragraph (a) of paragraph 3 of Part IV of the said Schedule 1 in the application of that paragraph to the investment by the Corporation of property belonging to the fund:—

"(a) securities or debentures of a company of which the total issued and paid up share capital is less than five hundred thousand pounds, or (as the case may be) an equivalent sum in any foreign currency in which such share capital is issued at the rate of exchange current at the time when the investment is made;".

(4) Paragraph 1 and sub-paragraph (a) of paragraph 2 of Part IV of the said Schedule 1 shall not apply in relation to any investment by the Corporation which is authorised by virtue of the provisions of the three foregoing subsections in any securities issued by a company established under the law of any territory outside the United Kingdom.

(5) Notwithstanding anything in the Act of 1961, the Corporation may invest any property belonging to the wider-range part of the fund in any manner specified in Part III of Schedule 1 to the Act of 1961, as amended by this section, and may also from time to time vary any such investments:

Provided that no such moneys as aforesaid shall be so invested at any time when the value of all the investments made in the manner specified in Part III of the said schedule as so amended equals or exceeds three-quarters of the total value of the fund.

(6) For the purposes of the last foregoing subsection the value of any investment shall be deemed to be the value of the investment at the time at which it was made.

23. The provisions of the last two foregoing sections shall have effect notwithstanding anything in subsection (3) of section 21 of the Act of 1937.

Section 21 (3)
of Act of
1937 not to
limit
foregoing
powers.

PART V
—cont.

Expenses of
investment of
super-
annuation
fund.

Registrar of
mortgages.

24. All costs, charges and expenses incurred by the Corporation in investing moneys forming part of the fund shall be paid by the Corporation out of the fund.

25. Section 207 of the Act of 1933 shall, in its application to the Corporation, have effect as if—

- (1) in subsection (1) after the words “local authority” there were inserted the words “or such other officer of the local authority appointed by the local authority for that purpose (in this section referred to as ‘the registrar’)”;
- (2) in subsections (2), (3) and (4) for the words “the clerk of the authority” there were substituted the words “the registrar”.

PART VI

GENERAL

Local
inquiries.

26.—(1) Any Minister of the Crown may cause such local inquiries to be held as he may consider necessary for the purpose of any of his functions under this Act.

(2) Subsections (2) to (5) of section 290 of the Act of 1933 shall apply in relation to any such inquiry; and for that purpose the definition of “department” in subsection (8) of that section shall include any Minister of the Crown having functions under this Act.

(3) In this section “Minister of the Crown” has the same meaning as in the Ministers of the Crown (Transfer of Functions) Act 1946.

1946 c. 31.

Protection of
members and
officers of
Corporation
from personal
liability.
1875 c. 55.

27. Section 265 of the Public Health Act 1875 shall apply to the Corporation as if any reference in that section to the said Act of 1875 included a reference to this Act and as if any reference in that section to a member of a local authority included a reference to a member of a committee or a sub-committee of a local authority.

Application
of provisions
of Public
Health Act
1936.

28. The sections of the Public Health Act 1936 mentioned in Schedule 2 to this Act shall have effect as if references therein to that Act included references to this Act.

1936 c. 49.
Costs of Act.

29. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act shall be paid by the Corporation.

SCHEDULES

SCHEDULE 1

Section 15.

TRUSTS APPLICABLE TO DESIGNATED SUMS

The trustees shall stand possessed of the designated sum to which a contributor has directed that section 15 (Power to require designated sums to be paid to trustees) of this Act shall apply and the income thereof upon the following trusts, and with and subject to the following powers and provisions, that is to say:—

1. During the period of twenty-one years from the death of the former contributor, the trustees may pay or apply the designated sum and the income thereof, or any part thereof, respectively to, or for the benefit of, all or any one or more exclusively of the other or others of the following persons:—

- (a) the widow or widower of such former contributor;
- (b) the grandparents of such former contributor and the grandparents of the widow or widower of such former contributor and the grandparents of any previous or deceased wife or husband of such former contributor;
- (c) the issue of such former contributor;
- (d) any other issue of any of the grandparents referred to in sub-paragraph (b) of this paragraph; and
- (e) the person or persons (if any, and whether of full age or not) to whom such former contributor has at any time put himself in loco parentis or of whose person or property such former contributor has at any time been guardian;

in such shares and in such manner as the trustees shall in their absolute discretion from time to time determine, and so that the trustees may, if they think fit, pay any sum to the parent or guardian of any infant to be applied for the benefit of such infant without seeing to the application thereof.

2. In addition to the powers conferred on them by virtue of paragraph 1 of this schedule during the said period of twenty-one years, the trustees may at any time pay or apply the designated sum and the income thereof or any part thereof respectively to, or for the benefit of, any person who in the opinion of the trustees was wholly or in part dependent on the earnings of such former contributor at his death, in such manner as the trustees shall in their absolute discretion think fit.

3. Subject as aforesaid, the designated sum and the income thereof, or so much thereof respectively as shall not have been paid or applied under the powers conferred by the foregoing provisions of this schedule, shall be paid to such person or persons (other than the Crown, the Duchy of Lancaster or the Duke of Cornwall) as would at the death of such former contributor have become entitled thereto under the Administration of Estates Act 1925 c. 23. 1925, as amended by the Intestates' Estates Act 1952, or any 1952 c. 64.

Sch. 1
—cont.

statutory modification or re-enactment thereof in force at the death of such former contributor if such former contributor had died possessed thereof intestate and domiciled in England and solvent, and so that such persons, if more than one, shall take in such shares and manner in which they would have taken under the provisions of the said Act or Acts, and subject to the conditions therein contained.

4. In this schedule “grandparents” and “issue” shall be construed as if the step-child, adopted child or illegitimate child of any person was that person’s child, and “issue” includes issue in any degree.

Section 28.
1936 c. 49.

SCHEDULE 2

SECTIONS OF PUBLIC HEALTH ACT 1936 APPLIED TO THIS ACT

Section	Marginal note
283	Notices to be in writing; forms of notices, &c.
288	Penalty for obstructing execution of Act.
296	Summary proceedings for offences.
304	Judges and justices not to be disqualified by liability to rates.
328	Powers of Act to be cumulative.



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